

Stay of Permanent Lok Adalat refund of electricity-arrears deposits; Clause 6.5 noted

High Court of Judicature at Allahabad · Single Judge · 24 August 2018 · Writ-C No. 28615 of 2018 · Writ-C No. 28615 of 2018 · PLA refund award stayed; notice issued, Clause 6.5 noted

HEADNOTE

In the licensee's challenge to a Permanent Lok Adalat award directing refund of Rs. 77,343 with interest deposited against recovery of electricity-bill arrears of the claimant's father, the Allahabad High Court observed that a person aggrieved by assessment or recovery could take recourse to Clause 6.5 of the Electricity Supply Code, 2005, issued notice, and stayed the award pending consideration.

FACTUAL SUMMARY

The Upkhand Adhikari of Vidyut Sahari Vitran and another petitioned the Allahabad High Court against a Permanent Lok Adalat award dated 21 April 2018 directing refund of Rs. 77,343 with 9% interest to Nitin Agarwal. The licensee contended that the Lok Adalat lacked jurisdiction because the deposits had been made pursuant to recovery of electricity-bill arrears of the claimant's father. The High Court issued notice, allowed a counter-affidavit, and stayed the award till the next date of listing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recourse-against-assessment-or-recovery

HOLDING

Where a consumer obtained a Permanent Lok Adalat award for refund of amounts deposited pursuant to recovery of electricity-bill arrears, the High Court, observing that Clause 6.5 of the Electricity Supply Code, 2005 was the available recourse against assessment or recovery, issued notice on the licensee's jurisdictional challenge and stayed the award pending consideration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT HAD JURISDICTION TO ORDER REFUND OF DEPOSITS MADE AGAINST RECOVERY OF ELECTRICITY-BILL ARREARS

The court recorded the challenge and said the matter requires consideration. ¶ 1

NOT DECIDED — MERITS OF THE CLAIM FOR REFUND OF RS. 77,343

¶ 1